

STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON
FAMILY DIVISION

Case No. 2024-001507-DC
Hon. Jenny L. McNeill

ANDREW JAMES PIGORS,
Plaintiff/Father,

v.

EMILY A. WATSON,
Defendant/Mother.

FAMILY DIVISION

ANDREW J. PIGORS,

EMILY A. WATSON,

Hon. Jenny L. McNeill

**MOTION FOR ORDER TO SHOW CAUSE FOR CIVIL CONTEMPT
AND FOR SANCTIONS**

I. JURISDICTION AND AUTHORITY

1. This Court has jurisdiction over this matter pursuant to MCL 600.1021 and MCL 722.26.
2. The Court possesses inherent authority to enforce its own orders through contempt proceedings. MCL 600.1701(a) provides that courts have the power to punish contempt, including "disobedience . . . of any lawful order, decree, or process of the court."
3. MCR 3.606 governs contempt proceedings in domestic relations cases and provides that a party who fails to comply with a court order may be held in contempt.

II. STATEMENT OF FACTS

A. Existing Court Orders

7. The documented violations include, but are not limited to, the following categories:

Category 1: Total Withholding of Child Since August 8, 2025

9. This total withholding is ongoing and constitutes a continuous violation of this Court's parenting time orders.

Category 2: Denial of Holiday Parenting Time

 a. Labor Day 2025;

 b. Thanksgiving 2025;

 c. Christmas 2025;

 d. New Year's Day 2026;

 e. Martin Luther King Jr. Day 2026;

 f. All holidays occurring during the 229+ day cutoff period.

Category 3: Denial of Birthday Parenting Time

Category 4: Refusal to Produce Child for Scheduled Exchanges

Category 5: Fabrication of Police Reports

"They want this incident documented so Emily can go tomorrow to get an Ex Parte order for full custody."

(See Exhibit A — NSPD Incident Report NS2505044)

Category 6: Coordination of Evidence Manufacturing

Category 7: Poisoning Allegation — Tested NEGATIVE

(See Exhibit B — Negative Poisoning Test Result)

17. The making of a serious but unsubstantiated allegation that is factually disproven, yet used to justify continued deprivation of parenting time, constitutes willful interference with the parent-child relationship.

Category 8: Felony Wiretapping — USB Recording (MCL 750.539c)

Category 9: Suppression of Exculpatory HealthWest Evaluation

III. LEGAL STANDARD FOR CIVIL CONTEMPT

24. **MCL 600.1701(a)** grants courts the power to punish contempt, including disobedience of any lawful court order.
25. **MCR 3.606** governs contempt in domestic relations cases. Under MCR 3.606(A), a party may move for an order to show cause why the other party should not be held in contempt for failure to comply with a court order.

 a. A valid court order existed;

 b. The respondent had knowledge of the order;

 c. The respondent violated the order; and

 d. The violation was willful.

In re Contempt of Dougherty, 429 Mich 81, 100-101 (1987).

27. The purpose of civil contempt is **coercive, not punitive** — to compel compliance with the court's orders. *Id.* at 93. The contemnor "carries the keys of the prison in his own pocket" — compliance with the order results in the lifting of sanctions.

28. Once the moving party establishes a prima facie case of noncompliance, **the burden shifts to the respondent** to demonstrate an inability to comply or other defense. *Dougherty*, 429 Mich at 101.

Parenting Time Enforcement — MCL 722.27a(3)

29. MCL 722.27a(3) provides that if the court determines that a parent has denied parenting time without good cause, the court "**shall do 1 or more of the following**":

 (a) Modify the parenting time order to give additional parenting time to make up for the parenting time denied;

 (b) Order the parent who violated the order to pay the costs and attorney fees of the other parent;

 (c) Impose a fine;

 (d) Order community service;

(e) Order the parent to attend a parenting program.

30. The statute's use of "shall" is mandatory — the court is **required** to impose at least one remedy when a violation is established.

IV. APPLICATION OF LAW TO FACTS

A. Valid Court Order Existed

D. The Violations Are Willful

34. The violations are willful as demonstrated by:

 a. The **systematic nature** of 305+ incidents over the course of the proceedings;

 b. The **escalating pattern** from partial interference to total withholding;

 c. The coordinated evidence manufacturing documented in NSPD NS2505044;

 d. The **fabricated poisoning allegation** that tested
NEGATIVE;

e. The **duration** of the current withholding — 229+ consecutive days — which cannot be characterized as inadvertent;

V. HARM

 a. **To L.D.W.:** A three-year-old child has been deprived of his father for 229+ consecutive days during critical developmental years. The harm of prolonged parental separation on young children is well documented and, at this duration, may be irreparable;

VI. RELIEF REQUESTED

9. **GRANT** such other and further relief as this Court deems just and equitable.

PROPOSED ORDER TO SHOW CAUSE

FAMILY DIVISION

Hon. Jenny L. McNeill

ORDER TO SHOW CAUSE

At a session of said Court, held in the Courthouse in the City of Muskegon, County of Muskegon, State of Michigan, on the _____ day of _____, 20__.

PRESENT: HON. _____, Circuit Court Judge

2. The 305+ documented incidents of parenting time interference;
3. The denial of holiday and birthday parenting time;
4. The fabrication of police reports and coordination of evidence manufacturing in connection with NSPD Incident Report NS2505044.

IT IS SO ORDERED.

Date: _____

VERIFICATION

COUNTY OF MUSKEGON)

North Muskegon, MI 49445

Telephone: (231) 903-5690

Email: andrewjpigors@gmail.com

Subscribed and sworn to before me this _____ day of _____, 20____.

Notary Public, State of Michigan

County of Muskegon

My Commission Expires: _____

CERTIFICATE OF SERVICE

I hereby certify that on _____, 20____, I served a true and correct copy of this Motion for Order to Show Cause for Civil Contempt and for Sanctions, Proposed Order to Show Cause, and all Exhibits upon:

Emily A. Watson

2160 Garland Drive

Norton Shores, MI 49441

by the following method(s):

■ First-class U.S. Mail, postage prepaid

■ Personal delivery

■ Email

Andrew J. Pigors, *In Propria Persona*

1977 Whitehall Road, Lot 17

North Muskegon, MI 49445

(231) 903-5690

andrewjpigors@gmail.com

EXHIBIT INDEX

Exhibit	Description
A	NSPD Incident Report NS2505044 (Albert Watson Statement — Evidence Manufacturing)
B	Negative Poisoning Test Result
C	Parenting Time Denial Calendar (229+ Consecutive Days — August 8, 2025 to Present)
D	Interference Incident Log — 305+ Documented Incidents
E	Final Judgment of Custody and Parenting Time (July 17, 2024)
G	Employment Loss Documentation (2 Jobs, 2 Homes Lost to Incarceration)
H	PPO 2023-05907-PP Docket — "NOT SERVED" Status
I	USB Recording Chain of Custody — Lori Watson Felony Wiretapping (MCL 750.539c)
J	HealthWest Evaluation #1 — ALL ZEROS, Clearing Father (Sept 4, 2025)
L	Transcript — Judge McNeill "Ghost Evaluation" / "I Had My Staff Listen" Statements